

HOUSE No. 1548

The Commonwealth of Massachusetts

PRESENTED BY:

Joseph D. McKenna

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the state's requirements for calculating the municipal land area for subsidized housing inventory (SHI).

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/7/2025</i>

HOUSE No. 1548

By Representative McKenna of Sutton, a petition (accompanied by bill, House, No. 1548) of Joseph D. McKenna relative to the requirements for calculating the municipal land area for subsidized housing inventory. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1352 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the state's requirements for calculating the municipal land area for subsidized housing inventory (SHI).

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 40B of the General Laws, as appearing in the 2020 Official Edition, is hereby
2 amended by adding the following new section at the end thereof:

3 Section X, For the purposes of calculating whether Subsidized Housing Inventory
4 Eligible Housing exists in the city or town on sites comprising more than 1-½ % of the total land
5 area zoned for residential, commercial, or industrial use, pursuant to M.G.L. c. 40B, Sections 20-
6 23, as further defined under 760 CMR 56.03(3)(b) the following categories shall by considered
7 and shall not be counted towards the city or town's total land area:

8 a. total land area under M.G.L. c. 61A

- 9 b. total land area under M.G.L c. 61B
- 10 c. total land area consisting of all farmland with perpetual deed restrictions
- 11 d. total land area consisting of private cemeteries
- 12 e. total land area pertaining to all underground and above ground utilities including
- 13 regional gas lines